

SENATE No. 2264

The Commonwealth of Massachusetts

PRESENTED BY:

William J. Driscoll, Jr.

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to consumer protection for residential solar customers.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>William J. Driscoll, Jr.</i>	<i>Norfolk, Plymouth and Bristol</i>	
<i>Joanne M. Comerford</i>	<i>Hampshire, Franklin and Worcester</i>	<i>3/12/2025</i>

SENATE No. 2264

By Mr. Driscoll, a petition (accompanied by bill, Senate, No. 2264) of William J. Driscoll, Jr. for legislation relative to consumer protection for residential solar customers. Telecommunications, Utilities and Energy.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to consumer protection for residential solar customers.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 2 of Chapter 25A of the General Laws is hereby amended by
2 inserting after the words “alternative portfolio standard;” the following:- “ensure there are
3 adequate consumer protections in place for residential customers purchasing solar energy
4 products,”

5 SECTION 2. Section 6 of Chapter 25A of the General Laws is hereby amended by
6 inserting at the end of the section the following:

7 (16) regulate the sale of solar energy products to residential customers.

8 SECTION 3. Section 7 of Chapter 25A of the General Laws is hereby amended by
9 inserting after the word “electricity,” in the first paragraph add, the following:- solar energy
10 products when sold to residential customers,

SECTION 4. Section 7 of Chapter 25A of the General Laws is hereby amended further amended by inserting after the word “electricity,” in the last paragraph, the following:- solar energy products when sold to residential customers,

SECTION 5. Chapter 25A of the General Laws, as so is hereby amended by inserting:

Section 22: Residential Solar Consumer Protection

As used in this section, the following words shall have the following meanings unless the context clearly requires otherwise:

“Solar energy product” an agreement involving the sale of equipment or power to an end use customer that directly involves the installation of photovoltaic equipment or the purchase of power from a photovoltaic system. This is inclusive of, but not limited to, lease agreements on photovoltaic equipment, power purchase agreements involving the installation of photovoltaic equipment, agreements and the direct purchase of photovoltaic equipment. This definition is not inclusive of products or services which provide bill credits as part of a subscription, provided those products or services are part of or participating in a solar energy incentive program managed by the department.

The department shall regulate the sale of solar energy products to residential customers in the Commonwealth with the aims of: (i) promoting the deployment and adoption of residential solar energy products (ii) protecting residential customers from exploitative or unreasonable contracts for solar energy products.

To further these aims the department shall: (i) create standard disclosure requirements, and any related materials, necessary to assist consumers in understanding solar energy products,

(ii) require all residential contracts for solar energy products to be signed on paper, with the customer receiving a paper copy immediately upon signing the contract at the latest; (iii) collect that information which is necessary to reasonably ensure that companies selling solar energy products to residential customers are doing so in a way that is in compliance with state and local laws, including, but not limited to, local permitting requirements and the use of licensed workers in those roles with licensure requirements, and (vi) create a licensing requirement and system for all companies involved in the sale or installation of solar energy products.

The department may: (i) level fines against companies marketing or selling solar energy products which fail to comply with the regulations put out by the department, (ii) directly, or through a community organization, provide resources or support for residential customers who have signed a contract for solar energy products which has caused them financial hardship, (iii) regulate aspects of the relationship between third party salespeople marketing solar energy products to residential customers and the companies which higher them to market solar energy products, (iv) set a maximum per kWh price and escalation rate for power purchase agreements for residential customers, (v) ensure that power purchase agreement contracts with residential customers do not supply more power or credits than the residential customer needs, and (vi) undertake other similar actions which are necessary to meet the goals outlined in the first paragraph of this section.

Nothing in this section shall be read as interfering with the ability of the Office of the Attorney General to exercise the power granted to it under Chapter 93A.